

		(See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Defendant SF Glass Cleaning Solutions to obtain new counsel or risk forfeiting important rights through non-representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) Therefore, it is incumbent upon the court and Counsel to advise the Defendant SF Glass Cleaning Solutions or the representatives of Defendant SF Glass Cleaning Solutions of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause re: barring Defendant SF Glass Cleaning Solutions from litigating this case without counsel, and will order that Counsel serve Defendant SF Glass Cleaning Solutions and Mei Mei Li with the order relieving counsel, notice of the order to show cause re: barring Defendant SF Glass Cleaning Solutions from litigating this case without counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
8	Cunningham vs. Santa Ana Unified School District 30-2025-01531073	<u>Demurrer</u> Defendant Santa Ana Unified School District's Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 1st Cause of Action, SUSTAINED without leave to amend as to the 2nd Cause of Action, and OVERRULED as to the 4th and 5th Causes of Action. If Plaintiff Pablo Cunningham does not amend the Complaint within the period of time stated above, Defendant Santa Ana Unified School District shall file an answer or other pleading in response to the remaining causes of action of the Complaint within

		10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Pending Motion</u> Defendant Santa Ana Unified School District demurs to the 1st, 2nd, 4th, and 5th Causes of Action of the Complaint filed by Plaintiff Pablo Cunningham. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.)
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	However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." <i>(Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc. (2023) 95 Cal.App.5th 645, 653.)</i> Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Whistleblower Retaliation under Cal. Labor Code § 1102.5)</u> Labor Code section 1102.5 states that: An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties. (Labor Code, § 1102.5, subd. (b).)
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		In order to make out a claim for retaliation under Section 1102.5, the plaintiff "must show (1) she engaged in a protected activity, (2) her employer subjected her to an adverse employment action, and (3) a causal link between the two." (<i>St. Myers v. Dignity Health</i> (2019) 44 Cal.App.5th 301, 314 OR <i>St. Myers v. Dignity Health, supra</i>, 44 Cal.App.5th at p. 314.) Defendant contends that the 1st Cause of Action fails because it does not identify any specific state or federal statute or local, state, or federal rule or regulation that Plaintiff reasonably believed was violated. Plaintiff concedes that the 1st Cause of Action is not sufficiently pleaded but seeks leave to amend to identify the specific statutes that Plaintiff reasonably believed were being violated. (See Pltf.'s Opp'n to Def.'s Dem. (Opp'n) at pp. 2:109-13, 4:7-6:8.) "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Here, Plaintiff has requested leave to amend and indicated how he would amend the Complaint. Further, the demurrer is brought against the original Complaint such that Plaintiff has not had a prior opportunity to amend. Therefore, the court will sustain the demurrer to the 1st Cause of Action with leave to amend. <u>2nd Cause of Action (Wrongful Termination in Violation of Public Policy)</u>
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		"[W]hen an employer's discharge of an employee violates fundamental principles of public policy, the discharged employee may maintain a tort action and recover damages traditionally available in such actions." (<i>Tameny v. Atlantic Richfield Co.</i> (1980) 27 Cal.3d 167, 170.) "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (<i>Yau v. Allen</i> (2014) 229 Cal.App.4th 144, 154.) However, the Government Claims Act (Act), Government Code §§ 810 <i>et seq.</i>, declares a general rule of immunity, contained in Civil Procedure Code section 815, and then sets out exceptions to that rule. (<i>Cole v. Town of Los Gatos</i> (2012) 205 Cal.App.4th 749, 757.) Under the rule, "[a] public entity is not liable for an injury, '[e]xcept as otherwise provided by statute.'" (<i>Hampton v. County of San Diego</i> (2015) 62 Cal.4th 340, 347, quoting Gov't Code, § 815, subd. (a).) Therefore, "[i]t is a well-settled rule that 'there is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person.'" (<i>Green Valley Landowners Assn. v. City of Vallejo</i> (2015) 241 Cal.App.4th 425, 441–442, quoting <i>Cowing v. City of Torrance</i> (1976) 60 Cal.App.3d 757, 761.) Here, the Complaint alleges that Defendant is a public entity. (See Compl., ¶ 2 ["Plaintiff PABLO CUNNINGHAM ("Plaintiff" or "Cunningham") hereby complains against Defendants SANTA ANA UNIFIED SCHOOL DISTRICT ('District'), a public entity"], bold omitted.) Thus, Defendant is immune from common law claims, such as the 2nd Cause of Action, except where such claims are based on a statute. Defendant argues that the 2nd Cause of Action cites to no statute that was violated by the termination of Plaintiff's employment.
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		Plaintiff has agreed to withdraw the 2nd and 3rd Causes of Action. (See Opp’n at pp. 2:5-9, 6:9-16.) Thus, the court will sustain the demurrer without leave to amend as to the 2nd Cause of Action. (fn.1) (fn.1) Defendant has not demurred to the 3rd Cause of Action, but based upon Plaintiff’s representation, the court expects that the 3rd Cause of Action will not be reasserted in the amended complaint. <u>4th Cause of Action (Retaliation in Violation of the Fair Employment and Housing Act)</u> The Fair Employment and House Act (FEHA) prohibits an employer from “discharg[ing], expel[ling], or otherwise discriminat[ing] against any person because the person has opposed any practices forbidden under [FEHA].” (Gov’t Code, § 12940, subd. (h).) “To establish a prima facie case of retaliation, ‘a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.’” (<i>Zamora v. Security Industry Specialists, Inc.</i> (2021) 71 Cal.App.5th 1, 63, citing <i>Yanowitz v. L’Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) The Complaint alleges that Plaintiff engaged in protected activity by reporting “gender-based discriminatory treatment between the boys’ and girls’ wrestling teams, including the unequal allocation and mishandling of resources” and “the misappropriation of funds belonging to the girls’ team accounts, on two separate occasions, which Plaintiff reasonably believes constituted unlawful gender discrimination and disparate treatment.” (Compl., ¶¶ 58-59, bold omitted.) The Complaint also pleads that “[f]ollowing Plaintiff’s reports, Defendant subjected Plaintiff to adverse employment actions, including termination, and such actions were taken substantially because of Plaintiff’s protected activity” and “Plaintiff’s protected disclosures regarding gender discrimination and financial misappropriation were a substantial motivating factor in Defendant’s
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		retaliatory conduct, including Plaintiff's ultimate termination." (<i>Id.</i>, ¶¶ 62-63, bold omitted.) These allegations are sufficient to make out a FEHA retaliation claim. Defendant, however, throws up a number of one-sentence arguments that it fails to explain and that lack merit. For example, Defendant contends that "Plaintiff did not engage in a protected activity for the reasons discussed above" and "as discussed above, there is no underlying claim regarding the whistleblower cause of action." (Dem. to Pltf.'s Compl., Mem. of P.s&A.s (Dem.) at pp. 10:20, 11:9-10.) Despite the fact that these statements come on the 10th and 11th pages respectively of the document, Defendant does not explain which arguments it is referring to when it says the arguments were "discussed above." In any case, the Complaint clearly alleges that Plaintiff was engaged in protective activity when he reported gender-based discrimination treatment. Further, the whistleblower cause of action failed because Plaintiff failed to state with specificity the statute, regulation, or rule he reasonable believed was violated, as required by the whistleblower statute, Labor Code section 1102.5. The FEHA statute upon the 4th Cause of Action is based, Government Code section 12940(h), contains no such requirement of specificity. It is sufficient that the Complaint allege that Defendant retaliated against him for reporting gender-based discrimination, which is prohibited under FEHA. (See Gov't Code, § 12940, subd. (a).) Further, unlike the common law wrongful termination cause of action, the 4th Cause of Action is based on a violation of a statute, namely FEHA and Government Code section 12940(h). Defendant also contends Plaintiff "was an at will employee who was let go." (Dem. at p. 10:20-21.) Of course, an employer is not immune from a FEHA claim simply because the employee is at-will. (See <i>Phillips v. St. Mary Regional Medical Center</i> (2002)
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		96 Cal.App.4th 218, 226 [“[A]lthough an employer may terminate an at-will employee for no reason, or any arbitrary or irrational reason, the employer has no power to terminate the employee for a reason contrary to the law or fundamental public policy.”].) Defendant next contends that “Plaintiff cannot establish any causal link to a protected activity.” (Dem. at p. 10:21.) On demurrer, Plaintiff does not need to establish causation. Plaintiff only needs to plead that there was causation, which Plaintiff has done. Defendant further asserts that “Plaintiff fails to identify an employee of DISTRICT that engaged in any prohibited conduct.” (<i>Id.</i> at p. 11:6.) First, Defendant fails to point to any authority for the proposition that Plaintiff is required to provide this level of specificity in the Complaint, especially with respect to a matter that is within the knowledge of the Defendant, such as who misallocated the donations to the boy’s wrestling program. Second, Defendant points to prohibited activity by two coaches, who he specifically names in the Complaint. (See Compl., ¶ 21.) Defendant then claims that “Plaintiff cannot properly assert a ‘harassment’ claim as none exists” (Dem. at p. 11:7.) This argument is a red herring. Plaintiff is not alleging a harassment claim, but rather a retaliation claim. “A demurrer must dispose of an entire cause of action to be sustained.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119.) Thus, the 4th Cause of Action stands because the retaliation claim is properly pleaded even if a harassment claim is not. Defendant further argues that “no facts are alleged, with specificity or otherwise. [sic] that DISTRICT has a legal obligation to prevent purported misconduct of a non-employee.” (Dem. at p. 11:7-9.)
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		However, the 4th Cause of Action is not based on the misconduct of non-employees. Rather, the Complaint alleges that Plaintiff reported the misconduct of employees of Defendant, including the unnamed employee who misallocated the donations to the boy's wrestling program and the two wrestling coaches identified by name. (See Compl., ¶¶ 16-24.) (fn.2) (fn.2) To the extent Defendant contends that the Complaint does not adequately allege that Plaintiff engaged in protected activity because, after the first time Plaintiff reported the misallocation of funds, the misallocation was corrected, the court notes that the Complaint alleges that a second donation was similarly misallocated and there is nothing in the Complaint which shows that this misallocation was corrected. (See Compl., ¶¶ 19-20, 23-26.) Accordingly, the court will overrule the demurrer to the 4th Cause of Action. <u>5th Cause of Action (Failure to Prevent Harassment and Discrimination under Cal. Gov. Code § 12940(k))</u> FEHA provides that it is an unlawful employment practice: "(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) Section 12940(k) "creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages." (<i>Dickson v. Burke Williams, Inc.</i> (2015) 234 Cal.App.4th 1307, 1313.) Such a claim requires a plaintiff to prove: (1) he or she was an employee; (2) subject to harassment/discrimination/retaliation in the course of employment; (3) the employer failed to take all reasonable steps to prevent the harassment/discrimination/retaliation; (4) the plaintiff was harmed; and (5) the employer's failure to take all reasonable steps to prevent harassment/
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	discrimination/retaliation was a substantial factor in causing the plaintiff's harm. (See CACI 2527.) Thus, a cause of action for failure to prevent discrimination or harassment is contingent upon a viable claim of discrimination or harassment. (<i>Dickson v. Burke Williams, Inc., supra</i>, 234 Cal.App.4th at p. 1314.) Defendant contends that this cause of action fails because there is no underlying FEHA harassment or discrimination claim. However, the retaliation claim is sufficiently pleaded and survives the demurrer. Accordingly, the court will overrule the demurrer to the 5th Cause of Action. <u>Motion to Strike</u> Defendant Santa Ana Unified School District's Motion to Strike Portions of Plaintiff's Complaint is GRANTED with 15 days leave to amend. If Plaintiff Pablo Cunningham does not amend the Complaint within the period of time stated above, Defendant Santa Ana Unified School District shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendant Santa Ana Unified School District moves to strike Paragraphs 36, 66, and 76 of the Complaint filed by Plaintiff Pablo Cunningham, which relate to prejudgment interest and punitive damages. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent
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		to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) In addition, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Prejudgment Interest</u> Civil Procedure Code section 3287 provides that: (a) A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the
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		creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state. (b) Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed. (Code Civ. Proc., § 3287, subds. (a)-(b).) In addition, Civil Procedure Code section 3288 states that "[i]n an action for the breach of an obligation not arising from contract, and in every case of oppression, fraud, or malice, interest may be given, in the discretion of the jury." (Code Civ. Proc., § 3288.) "Under Civil Code section 3288, the trier of fact may award prejudgment interest '(i)n an action for the breach of an obligation not arising from contract, And in every case of oppression, fraud, or malice . . .'" (<i>Bullis v. Security Pac. Nat. Bank</i> (1978) 21 Cal.3d 801, 814, quoting Code Civ. Proc., § 3287.) This applies to both the jury or the court when sitting as trier of fact. (<i>Id.</i> at p. 814, fn.16.) Finally, Civil Procedure Code section 3291 provides that "[i]n any action brought to recover damages for personal injury sustained by any person resulting from or occasioned by the tort of any other person, corporation, association, or partnership, whether by negligence or by willful intent of the other person, corporation, association, or partnership, . . . it is lawful for the plaintiff in the complaint to claim interest on the damages alleged as provided in this section." (Civil Code, § 3291.) Prejudgment interest is available under Section 3291 "[i]f the plaintiff makes an offer pursuant to Section 998 of the Code of Civil Procedure which the defendant does not accept prior to trial or within 30 days, whichever occurs first, and the
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		plaintiff obtains a more favorable judgment, the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of the plaintiff's first offer pursuant to Section 998 of the Code of Civil Procedure which is exceeded by the judgment, and interest shall accrue until the satisfaction of judgment.'" (<i>Lakin v. Watkins Associated Industries</i> (1993) 6 Cal.4th 633, 657, quoting Civil Code, § 3291, footnote omitted.) However, Section 3291 "shall not apply to a public entity, or to a public employee for an act or omission within the scope of employment, and neither the public entity nor the public employee shall be liable, directly or indirectly, to any person for any interest imposed by this section." (<i>Ibid.</i>) Here, the Complaint does not allege that Plaintiff's damages are certain or capable of being made certain by calculation, nor doe Plaintiff's claims sound in contract. Thus, Section 3287 does not apply. Further, while the Complaint does allege that Defendant acted with malice, oppression, or fraud, it does so only to seek punitive damages. (See Compl., ¶¶ 66, 76.) In addition, the court will strike these paragraphs of the Complaint, for the reasons stated below. As a result, Section 3288 does not apply. Finally, Section 3291 has not relevance here because there is no allegation that Plaintiff made a Civil Procedure Code section 998 offer and in any case, Defendant is a public entity to which Section 3291 does not apply. In addition, Plaintiff has failed to file an opposition or respond to the motion to strike. Thus, Plaintiff has waived any arguments regarding this motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the motion to strike with respect to the allegation for prejudgment interest.
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Striking Punitive Damages

To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).)

"Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).)

"Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).)

"Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).)

In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.)

However, "a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant." (Gov't Code, § 818.)

Here, Plaintiff pleads that Defendant is a public entity. (See Compl., ¶ 2.)

Therefore, the court will grant the motion to strike with respect to the allegations for punitive damages.

Leave to Amend

		In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff has not requested leave to amend and has not explained how he would amend the Complaint to properly allege an entitlement to prejudgment interest and punitive damages. However, the motion to strike is asserted against the original Complaint such that Plaintiff has not had a prior opportunity to amend the Complaint. Further, the court has already granted Plaintiff leave to amend the Complaint in the face of Defendant's demurrer. Thus, no undue prejudice or delay would be caused by the court granting leave to amend here. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike,
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		amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of these rulings.
9	Hernandez vs. Anaheim Arena Management LLC 30-2024-01414209	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is no written tentative ruling on this matter. The court will hear oral argument from the parties or their counsel.
10	Richardson vs. FCA US LLC 30-2023-01345674	<u>Motion for Attorney's Fees and Costs</u> Plaintiff Wayne Patrick Richardson's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant FCA US LLC is ORDERED to pay to Plaintiff Wayne Patrick Richardson reasonable attorney's fees in the amount of \$36,626.50 and costs in the amount of \$6,037.53 within 30 days of service of the notice of ruling. <u>Pending Motion</u> Plaintiff Wayne Patrick Richardson moves for an award of attorney's fees in the amount of \$41,918 and costs in the amount of \$6,037.53 from Defendant FCA US LLC, pursuant to the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790, <i>et seq.</i> <u>Standard for Motion for Attorney's Fees</u>